

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

ROHAN BRIJLALL

Plaintiff,

-Against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ARIEL CRUZ, SHIELD NO. 21407, IN HIS
INDIVIDUAL CAPACITY, and JOHN DOE NO.1,
IN HIS INDIVIDUAL CAPACITY.

Defendants.

ECF
COMPLAINT

**Plaintiff Designates Bronx
County as the Place of Trial.**

Jury Trial Demanded

Index No.

X

Plaintiff, Rohan Brijlall, by his attorney, Welton K. Wisham of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, New York City Police Officer Ariel Cruz, and Police Officer John Doe No.,

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the false arrest, false imprisonment, unreasonable and excessive use of force, malicious prosecution, humiliation, degradation caused by Defendant Police Officer, Ariel Cruz who engaged in an vicious and malicious use of forced against Plaintiff, Rohan Brijlall on or about February 19, 2019, at approximately 10:30 pm outside a holding cell at the forty fourth (44th), New York City Precinct located at 2 East 169th Street, Bronx, New York.

2. On February 19, 2019, at approximately 10:00pm, Plaintiff Rohan Brijlall was a passenger in a motor vehicle driven by Joseph Diluca in the vicinity of Webster Ave, near East 188th Street, Bronx, New York. The motor vehicle displayed a Florida license plate

3. Officer Ariel Cruz ordered the driver of the vehicle to stop the vehicle and pull over . The driver complied.

4. Officer Cruz arrested the Plaintiff as well as the driver and charged them with violating section 165.40, of the New York Penal Law, Possession of Stolen Property.

5. Plaintiff was transported to the 44th police precinct and kept outside the precincts' holding cell for processing.

6. Officer Cruz ordered Mr. Brijlall to remove his belt from his pants.

7. As Plaintiff was removing his belt, officer Cruz, unprovoked, and without legal justification, suddenly and unexpectedly grabbed Mr. Brijlall by placing one hand around Plaintiff's head while placing his other hand around Mr. Brijlall's waist and threw Plaintiff to the ground in front of several police officers stationed inside the precinct. Officer Cruz willfully and deliberately twisted Plaintiff's right arm until it broke. The act was witnessed by other officers inside the precinct and several other inmates.

JURISDICTION AND VENUE

8. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the City of New York, State of New York.

9. This action arising under the Fourth Amendment and Fourteenth Amendment to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and New York State Law.

10. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42. U. S. Code Section, 1983.

11. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

12. Plaintiff, Rohan Brijlall is a black male, who at all relevant times was a resident of the State of New York. Mr. Brijlall is a citizen of the United States.

13. Defendant, City of New York is a municipal corporation duly organizes under the laws of the State of New York.

14. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant Police officers as well as all other New York City Police Department personnel.

15. The City of New York is responsible for enforcing the rules of the New York City Police Department and for ensuring that the Defendants police officers and all other New York City Police officers and personnel obey the laws of the State of New York and the laws of the Constitution of the United States.

16. At all times relevant ,Defendant Police officer Ariel Cruz assigned to the Bx. BRCCR, was and still is a member of the New York City Police Department acting in the capacity of agent, servant and employee of the City of New York, and within the scope of his employment as such and acting under color of state law.

17. That at all times mentioned herein, Defendant John Doe No. 1, name being fictitious and unknown to the Plaintiff, was and remains a New York City Police Officers believed to be assigned to the 44th police precinct located in the Bronx, New York.

18. That Defendant, John Doe, No.1, was acting within the scope of his employment under color of law, and that such officer is an employee of the New York City Police Department acting in the capacity as agent, servant and employee of the City of New York at the time of the incident complained of herein.

JURY DEMAND

19. Plaintiff demands trial by jury.

NOTICE OF CLAIM

20. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim on or about April 26, 2019, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50.

21. On May 10, 2019, the Comptroller of the City of New York acknowledge receipt of Mr. Brijlall's Notice of Claim by assigning claim number 2019PI013167.

22. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

23. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

24. That the defendants have wholly refused and neglected to make any adjustment or payment thereof.

25. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

26. That by reason of the foregoing, Plaintiff Rohan Brijlall has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

FACTUAL ALLEGATIONS

27. That on or about February 19, 2019, at approximately 10:00 p.m., Plaintiff Rohan Brijlall was a passenger in a motor vehicle driven by Joseph Diluca in the vicinity of Webster Ave, near East 188th Street, Bronx, New York. The motor vehicle displayed a Florida license plate

28. That Officer Ariel Cruz ordered the driver of the vehicle to stop the vehicle and pull over. The driver believed to be Joseph Dilucca, immediately complied.

29. Officer Cruz arrested the Plaintiff as well as the driver and charged them with violating section 165.40, of the New York Penal Law, Possession of Stolen Property.

30. Plaintiff was transported to the 44th or the 46th police precinct where he awaited to be processed, fingerprinted and photographed.

31. Mr. Brijlall was kept outside the precincts' holding cell awaiting processing.

32. That officer Cruz ordered Mr. Brijlall to remove his belt from around his pants.

33. As Plaintiff was removing his belt, officer Cruz unprovoked and without legal justification suddenly and unexpectedly grabbed Mr. Brijlall by placing one hand around Plaintiff's head while placing his other hand around Mr. Brijlall's waist and threw Plaintiff to the ground in front of several police officers inside the station house. Officer Cruz continued his unprovoked assault on Mr. Brijlall by violently twisting Plaintiff right arm until it broke.

34. Officer Cruz and John Doe No.1, were dressed in plain clothes and are believed to have been performing their duties under cover.

35. Officer Cruz told Plaintiff Brijlall, who was slow in removing his belt, “ Didn’t I tell you to take off your fucking belt”!

36. As Plaintiff was taking off his belt, Officer Ariel Cruz suddenly and without provocation grabbed Mr. Brijlall around Plaintiff’s head and waist and slammed Mr. Brijlall to the ground.

37. Officer Cruz then began to twist Plaintiff’s right arm until it snapped.

38. Mr. Brijlall heard a pop coming from his right arm which caused Plaintiff to experience excruciating pain and suffering.

39. Officer Cruz then placed handcuffs around Plaintiff’s legs as Plaintiff laying on the ground screaming in agony for help and medical assistance.

40. John Doe No.1, , a short Caucasian officer, also dressed in plain clothes, then assisted Officer Cruz in handcuffing Plaintiff Brijlall.

41. Officer, John Doe No. 1, placed handcuffs around Plaintiff’s hands all the while Mr. Brijlall was laying on the ground screaming for help.

42. Both officers, Cruz and John Doe No. 1, subsequently picked Mr. Brijlall up from the ground and threw the Plaintiff inside a jail cell where five (5) other pretrial detainees were housed.

43. Mr. Brijlall scream out loud that “ I can’t move my arms, I can’t feel my legs, please somebody help me”!

44. Plaintiff Brijlall was left lying on the floor inside the jail cell in agony for approximately forty-five (45) minutes until a sergeant at the precinct responded to Plaintiff's screams for help and came inside the holding cell.

45. That approximately forty (40) minutes later Mr. Brijlall was finally taken to the emergency room at Montefiore Hospital in the Bronx, New York where he sought medical treatment for his injuries. Plaintiff remained for approximately three hours .

46. That physicians at Montefiore Hospital took x-rays of Plaintiff's arm and informed Mr. Brijlall that his arm was broken.

47. Plaintiff could not walk normally after officer Cruz's assault. Plaintiff was limping on one leg due to the force inflicted upon him by officer Ariel Cruz.

48. Plaintiff Brijlall suffered serious emotional pain due to the acts describe herein inflicted on him by Defendant officer Cruz.

49. Mr. Brijlall suffered serious emotion pain for which he received medical treatment from psychiatrists during his incarceration.

50. Mr. Brijlall was overwhelmed by fear of the police during the time he remained laying of the floor of the police precinct.

51. Upon information and belief the entire act of violence by officer Cruz against Plaintiff Brijlall complained of herein, was captured on video from cameras located inside the precinct's holding cell.

52. That members of the New York City Police Department's Internal Affairs Unit interviewed Plaintiff Brijlall at central booking regarding their investigation of officer Ariel Cruz and his use of force against the Plaintiff.

53. That two members of the Internal Affairs Unit reviewed the videotape located at the police precinct which showed officer Cruz slamming Plaintiff to the ground without legal justification.

54. That the New York City Police Department Internal Affairs Unit, during their preliminary investigation of officer Cruz, informed Mr. Brijlall that Officer Cruz had engaged in criminal activity.

55. That members of the Internal Affairs Unit interview four pretrial detainees who were inside the holding cell at the precinct who witnessed Defendant Cruz slamming Plaintiff to the ground.

56. That officer Cruz remains on the force and has not been disciplined for his illegal actions against the Plaintiff.

57. That Officer Cruz seized Plaintiff without probable cause to have believed that Plaintiff engaged in criminal activity.

58. That Plaintiff sustained significant and unwarranted emotional trauma due to the actions by the Defendant police officers.

59. Rohan Brijlall was unreasonably subjected to physical and emotional pain, and suffering, stemming from the excessive and unreasonable force inflicted upon him by Defendant police officer Ariel Cruz without legal cause or justification.

60. Brijlall was held at the police precinct for approximately twenty-four (24) hours.

61. On June 21, 2019, the Honorable Criminal Court Judge J. Johnson dismissed the charge against Plaintiff Brijlall.

62. Mr. Brijlall suffers nightmares of visions of Defendant Cruz picking him up and slamming his body to the ground inside the police precinct .

63. Plaintiff is unable to sleep and is forced to recall the vicious and wanton acts committed against him by officer Cruz on February 19, 2019.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, ROHAN BRIJLALL AGAINST DEFENDANT POLICE OFFICER
ARIEL CRUZ FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO
42. U. S.C. SECTION 1983**

64. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 63", with the same force and effect as though more fully set forth at length herein.

65. That at all time herein mentioned Defendant Police Officer Ariel Cruz, falsely arrested and unreasonable seized Mr. Brijlall on February 19, 2019, which resulted in Plaintiff's arrest.

66. That officer Cruz is believed to be assigned as an undercover police officer working with the 44th or 46th police precinct in the Bronx, New York.

67. That Defendant police officer Ariel Cruz arrested and seized Rohan Brijlall while Plaintiff was riding inside a motor vehicle as a passenger.

68. That Officer Cruz's detention, seizure and arrest was conducted without any legal basis and without probable cause for Plaintiff's arrest.

69. Plaintiff was aware of his detention and seizure and did not consent to his confinement.

70. Officer Cruz knew or should have known that he lacked probable cause to arrest and seized the Plaintiff because officer Cruz knew or should have known that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

71. Mr. Brijlall was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty and falsely charged.

72. Defendant Cruz acted in substantial abuse of his power as a New York City Police Officer and acted beyond his authority. Officer Cruz willfully, knowingly, and intentionally deprived Mr. Brijlall of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

73. Officer Cruz's actions were willful , wanton and reckless.

74. That during Plaintiff's unlawful and wrongful incarceration, Mr. Brijlall was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendant Ariel Cruz.

75. As a direct and proximate result of Officer Ariel Cruz's misconduct and abuse of authority described above, the Plaintiff Rohan Brijlall sustained the damages herein alleged.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT
POLICE OFFICER ARIEL CRUZ FOR VIOLATING PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE AND EXCESSIVE USE OF FORCE, UNDER THE
FOURTH AND FOURTEENTH AMENDMENTS TO THE CONSTITUTION OF THE
UNITED STATES PURSUANT TO 42 U.S.C SECTION 1983**

76. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "75," with the same force and effect as though more fully set forth at length herein.

77. Mr. Brijlall was brutally and viciously attacked by officer Cruz while Plaintiff was waiting to be processed inside the police precinct subsequent to his arrest.

78. By reason of the foregoing, by grabbing, pulling and lifting Plaintiff up with both of his hands and slamming Plaintiff to the ground by forcibly grabbing Mr. Brijlall's body , officer Ariel Cruz willfully and intentionally engaged in an unreasonable and excessive use of force against Plaintiff Rohan Brijlall.

79. That Officer Cruz's brutal and unconscionable use of force deprived Plaintiff Brijlall of his rights, remedies, privileges and immunities guaranteed to every citizen of the United States secured by 42 U.S.C Section 1983, including but not limited to rights guaranteed under the Fourth and Fourteenth Amendments to the Constitution of the United States.

80. Officer Cruz acted under color of State law.

81. That officer Cruz acted in direct abuse of his power and beyond the scope of his authority.

82. Officer Cruz and John Doe No. 1, willfully and intentionally inflicted physical and emotional pain and suffering on Plaintiff Brijlall with deliberate indifference to Plaintiff's Constitutional rights.

83. Officer Ariel Cruz's conduct was carried out with the specific intent to deprive Plaintiff Brijlall of his Fourth and Fourteenth Amendments rights.

84. As a direct and proximate result of Defendant police officers Ariel Cruz's and John Doe No. 1, misconduct and abuse of authority as set forth above, Plaintiff has sustained damages hereinbefore alleged.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ROHAN BRIJLALL AGAINST DEFENDANT POLICE
OFFICER ARIEL CRUZ FOR MALICIOUS PROSECUTION UNDER 42 U.S.C
SECTION 1983.**

85. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "84", with the same force and effect, as though more fully set forth at length herein.

86. That the Defendant Police Ariel Cruz was acting within the scope of his employment and under color of law who falsely, and maliciously arrested and commenced prosecution against Rohan Brijlall without probable cause.

87. That officer Ariel Cruz maliciously and without legal justification commenced criminal proceeding against Plaintiff Rohan Brijlall in bad faith and without probable cause.

88. That upon information and belief, all charges were dismissed and sealed against Plaintiff on June 21, 2019, in favor of the Plaintiff.

89. That officer Cruz's arrest and prosecution against Plaintiff was predicated out of frustration, disgust, and with an evil intent, and malice.

90. Officer Cruz acted under pretense and under color of state law and without probable cause.

91. Officer Cruz acted in complete abuse of his power and beyond the scope of his authority to willfully and knowingly with intent to deprived Plaintiff of his protected rights under the Fourth and Fourteenth Amendment to the Constitution of the United States secured by 42 U.S.C Section 1983.

92. Officer Cruz's conduct describe herein and above was willful, wanton and reckless.

93. That by reason of the foregoing, the Plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

94. As a direct and proximate result of Officer Ariel Cruz's misconduct and abuse of power and authority set forth above, Plaintiff sustained the damages hereinbefore alleged.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST POLICE OFFICER ARIEL CRUZ AGAINST PLAINTIFF ROHAN BRIJLALL FOR VIOLATING PLAINTIFF'S RIGHT UNDER THE SUBSTANTIVE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE UNITED STATES CONSTITUTION.

95. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “94”, with the same force and effect, as though more fully set forth at length herein.

96. On the day of Plaintiff’s arrest, February 19, 2019, Plaintiff was a pretrial detainee.

97. Plaintiff had not been convicted of any crime at the time and during the period that he was subjected to the unconscionable abuse of authority and unreasonable infliction of force by Defendant Ariel Cruz.

98. As a Pretrial detainee, Mr. Brijlall is afforded constitutional protection against the unreasonable and excessive use of force caused by Officer Ariel Cruz which left Plaintiff with a fracture arm by the Substantive Due Process Clause of the Fourteenth Amendment.

99. That the force used by officer Cruz described herein was intended to punish Plaintiff Brijlall for slowly removing his belt in violation of the Substantive Due Process Clause.

100. That the force used by Defendant Ariel Cruz was not reasonably related to a legitimate governmental objective.

101. Defendants Ariel Cruz and John Doe No. 1, were acting under color of state law when officer Cruz lifted Plaintiff’s body up and threw his body to the ground causing Plaintiff to sustain a fractured arm.

102. Defendant John Doe No. 1, was acting under color of law when he intentionally threw Plaintiff inside the holding cell after officer Cruz broke Plaintiff’s arm exacerbating Plaintiff’s pain and suffering.

103. Defendant Ariel Cruz’s conduct by placing his arms around Plaintiff’s head and waist and then lifting Plaintiff up in midair and throwing Plaintiff to the ground, was outrageous, reckless and shock the conscience of a modern society.

104. Defendants Cruz and John Doe No. 1, acted beyond their authority and willfully, knowingly and intentionally deprived Plaintiff Brijlall of his constitutional rights secured under 42 U.S.C. Section 1983, and pursuant to the Fourth and Fourteenth Amendment to the Constitution of the United States.

105. As a direct and proximate result of the individual Defendants, Ariel Cruz and John Doe No. 1, misconduct describe above, Plaintiff Rohan Brijlall suffered severe physical and emotional distress and damages.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF ROHAN BRIJLALL
AGAINST THE CITY OF NEW YORK PPURSUANT TO 42 U.S.C. SECTION 1983,
FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICER
ARIEL CRUZ AND JOHN DOE NO. 1.**

106. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “105”, with the same force and effect as though more fully set forth at length herein

107. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff’s constitutional rights which caused the violation of such rights.

108. The Defendants’ unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

109. That at all relevant times, the City of New York acting through the Police officer Ariel Cruz and John Do. No. 1, New York City Police Department had de facto policies, practices,

customs and usages that directly and proximately caused the violation of Plaintiff's Fourth and Fourteenth Amendment rights as alleged herein.

110. That at all relevant times the City of New York failed to train, supervise or discipline the Defendant police officers Cruz and John Doe No. 1, thereby directly and proximately causing the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

111. The acts complained of herein were carried out by the Defendants police officers Ariel Cruz and Police officer John Doe No.1 in their official capacity as police officers of the City of New York pursuant to the customs and practices of the City of New York or as a result of the City of New York failure to train, supervise or discipline the Defendant officers.

112. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers engaging in unreasonable use of force .

113. The City of New York failed to adequately train, monitor, supervise or discipline its officers, agents and or servants including the Defendant police officers to respect and comply with the Fourth and Fourteenth Amendments rights of individuals included Plaintiff Brijlall.

114. As a direct and proximate result of the City's policies, practices and customs, Mr. Brijlall sustained damages as set forth herein.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANT POLICE OFFICERS,
ARIEL CRUZ AND JOHN DOE NO. 1 FOR ASSAULT UNDER THE COMMON LAW
OF THE STATE OF NEW YORK.**

115. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "114", with the same force and effect as though more fully set forth at length herein

116. That the Defendants, their agents, servants and /or employees, without cause or justification, or the consent of the plaintiff, intentionally placed the Plaintiff in imminent fear of physical harm by the manner in which Defendant Ariel Cruz threatened Mr. Brijlall by yelling at him to “remove your fucking belt”!

117. The Defendant John Doe No. 1, threatened Plaintiff when he assisted Officer Cruz in picking Mr. Brijlall off the ground and throwing Plaintiff inside the jail’s holding cell at the precinct.

118. Mr. Brijlall was caused to fear for his safety and for his life.

119. That by reason of the foregoing the Plaintiff has been unlawfully injured and seeks compensation against the Defendant officers for inflicting unnecessary pain, suffering, physical and emotional distress.

120. Defendants officers Cruz and John Doe No, 1, misconduct, threats and intimidation towards Plaintiff Brijlall were intentional.

121. That the Defendant officers intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by the Defendant officers’ unlawful and unprivileged threat of force use of force against the Plaintiff causing severe emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

122. That Plaintiff had reasonable apprehension of imminent harm due to Defendant police officers’ offensive actions against the Plaintiff.

123. The Defendant police officers intentionally placed Plaintiffs in reasonable fear of an imminent battery.

124. As direct and proximate result of the Defendant officers’ misconduct, Plaintiff suffered humiliation, degradation, embarrassment pain, suffering, and mental anguish.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE DEFENDANTS,
POLICE OFFICERS ARIEL CRUZ AND JOHN DOE NO. 1 ON BEHALF OF THE
PLAINTIFF FOR BATTERY PURSUANT TO THE COMMON LAW OF THE STATE
OF NEW YORK.**

125. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 124” with the same force and effect as though more fully set forth at length herein.

126. That by reason of the foregoing and by Defendant Cruz’s action of picking Plaintiff body up from the ground and throwing Plaintiff on the ground which such misconduct resulted in Plaintiff sustaining a broken arm , Defendant Ariel Cruz acting in his official capacity as a New York City Police Department officer and acting within the scope of his employment as such, committed a willful, unlawful , unwarranted and intentional battery upon Plaintiff Rohan Brijlall.

127. The by reason of the forgoing and by Defendant John Doe No. 1, action of lifting Mr. Brijlall up off the floor and throwing him into the holding cell with the assistance of Officer Cruz, and acting in his official capacity as a New York City Police officer acting within the scope of their employment as such, committed a willful, unlawful, unwarranted and intentional battery upon Plaintiff, Rohan Brijlall.

128. That as a result of the foregoing battery on the part of the Defendants, the Plaintiff were caused to suffer emotional injuries.

129. That Plaintiff has suffered and will continue to suffer agony in body, and mind.

130. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and are hereby seeking compensation for his emotional pain and suffering.

131. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained damages alleged herein.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR AGAINST THE CITY OF NEW
YORK FOR RESPONDEAT SUPERIOR**

132. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “131”, with the same force and effect as though more fully set forth at length herein.

133. That the City of New York hired and supervised Defendants police officers Ariel Cruz and John Doe No. 1 who seized the Plaintiff and engaged in the assault, battery and unlawful willful and intentional use of force against the Plaintiff in a New York City Police Precinct as the Plaintiff was being processed, photographed and fingerprinted, without legal justification.

134. That the Defendants committed the wrongs stated herein without probable cause, all done while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

135. As a result, the City of New is liable for the unlawful acts of their employees, police officers Ariel Cruz and John Doe No. 1, and their subordinates, under the legally recognized doctrine of Respondeat Superior.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE
OFFICERS ARIEL CRUZ AND JOHN DOE NO. 1 FOR INTENTIONAL INFLICTION
OF EMOTIONAL STRESS UNDER THE COMMON LAW OF THE STATE OF NEW
YORK.**

136. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “135” with the same force and effect as though more fully set forth at length herein.

137. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff,

138. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants' unlawful and reckless actions as more fully described herein.

139. Mr. Brijlall's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant Ariel Cruz, a New York City Police officers who intentionally and without reason, privilege or probable cause entered the area inside the 44th or 46th police precinct and yelled at the Plaintiff to remove his fucking belt.

140. That because Plaintiff was slow in removing his belt from around his waist, officer Cruz picked Mr. Brijlall up from off the ground and slammed his body to the ground causing the Plaintiff to suffer extreme pain and a broken arm.

141. That officer Cruz twisted Plaintiff's arm after he threw Plaintiff on the ground resulting in Plaintiff's fractured right arm and emotional stress for which he continued to have nightmares and extreme anxiety.

142. That the misconduct by officer Ariel Cruz was extreme and outrageous conduct, and intended to cause severe emotional distress.

143. That officer Cruz's misconduct directly caused Plaintiff to suffer a broken or fracture right arm.

144. That Mr. Brijlall has and continues to consult with a psychiatrist for the continued treatment of the nightmares and lack of sleep due to the Defendants actions and misconduct set forth above.

145. Officer Ariel Cruz's misconduct was extreme and outrageous in degree and exceeded the bounds of decency expected in a civilized society.

146. The acts committed against the Plaintiff by the defendant police officers were intended to cause the Plaintiff extreme physical damage to his mind and body.

147. As a direct and proximate result of the misconduct and abuse of authority by Defendant police officer Ariel Cruz, Plaintiff has been injured and has sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully request judgment against the Defendants as follows,

A. Compensatory damages against Defendant Police officer Ariel Cruz in the amount of \$ 5,00,000, for willfully and intentionally breaking Plaintiff's right arm while Plaintiff was inside a New York City Police precinct awaiting to be processed and for Plaintiff's extreme emotional pain and suffering caused by officer Cruz's misconduct..

B. Compensatory damaged against police officer John Doe No. 1, in the amount of \$ 1,000,000, for his misconduct in lifting Plaintiff up and throwing Plaintiff to the ground inside the precinct's holding cell.

C. Compensatory damages against the City of New York for Respondent Superior in the amount of \$ 1,000,000 .

D. Punitive damages in the amount of 3,000, 000 against officers Cruz for the pain and suffering he caused Plaintiff Rohan Brijlall.

E. Punitive damages against Defendant police officer John Doe No. 1, in the amount of \$1,000,000.

F. An order awarding Plaintiff reasonable attorneys' fees under 42.U.S.C Section 1988, together with the costs of this action.

G. For such other and further relief as the Court may deem just and proper.

Dated: January 29, 2020
Bronx, New York

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